

Notice from the National Commission for Data Protection regarding
Bill No. 8193 amending the amended law of July 18, 2018 on the Grand Ducal Police.
Deliberation No. 30/AV/14/2024 of May 16, 2024.

1.

In accordance with Article 57.1.e) of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016 on the protection of individuals with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (hereinafter referred to as the "GDPR"), to which Article 7 of the law of August 1, 2018 organizing the National Commission for Data Protection and the general regime on data protection refers, the National Commission for Data Protection (hereinafter referred to as the "National Commission" or the "CNPD") "advises, in accordance with the law of the Member State, the national parliament, the government, and other institutions and bodies regarding legislative and administrative measures related to the protection of the rights and freedoms of individuals with regard to processing."

Article 36.4 of the GDPR states that "[m]ember states consult the supervisory authority in the framework of the preparation of a legislative proposal to be adopted by a national parliament, or of a regulatory measure based on such a legislative measure, which relates to processing."

2.

By letter received on April 6, 2023, the Minister of Internal Security invited the National Commission to express its opinion on Bill No. 8193 amending the amended law of July 18, 2018 on the Grand Ducal Police (hereinafter referred to as the "bill").

3.

According to the explanatory memorandum, the main objectives of the bill are, on the one hand, the creation of "a legal basis for the spontaneous transmission of information from the Public Prosecutor's Office to the Grand Ducal Police concerning reports or other documents established regarding a member of the Grand Ducal Police," and on the other hand, the reform of the honorability investigation of candidates applying for positions in the police framework of the Grand Ducal Police and the establishment of an honorability check for candidates applying for positions in the civil framework of the Police.

4.

This notice will focus on its observations regarding data protection aspects, particularly on Articles 1 to 4 of the bill. It will also take into account the opinion of the General Prosecutor's Office dated May 4, 2023, the opinion of the Prosecutor's Office of the District Court of Luxembourg dated June 9, 2023, as well as the opinion of the State Council dated November 28, 2023.

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5.

First of all, it is important to commend the willingness and effort of the authors of the bill to frame the honorability investigation that would be conducted in the context of hiring a candidate for one of the positions in the police framework and the civil framework. Indeed, the proposed provisions are more precise than those currently in place.

On the spontaneous transmission of information from the Public Prosecutor's Office to the Grand Ducal Police as provided for in Article 1 of the bill

6.

Firstly, Article 1 of the bill provides that "the Public Prosecutor's Office shall transmit, on its own initiative, to the Director General of the Police, a copy of the reports or documents established

by the Police regarding a member of the Police, respectively the judgments pronounced regarding a member of the Police, if the competent State Prosecutor deems that the transmission of the report, document, or judgment is appropriate."

7.

The authors of the bill should be congratulated for establishing, from a legal security perspective, a legal basis for the spontaneous transmission of reports containing personal data of members of the Police from the Public Prosecutor's Office to the Grand Ducal Police.

8.

Despite the legal framework provided by this legal basis governing the spontaneous transfer of information between the aforementioned actors, as well as the documents that may be involved, the National Commission emphasizes that certain aspects related to data processing are not sufficiently detailed, or are not specified at all in the bill. This particularly concerns the criteria for determining in which cases the competent State Prosecutor considers the transmission to be "appropriate."

9.

No clarification is provided regarding the criteria or conditions for determining whether such spontaneous transmission of information is considered "appropriate" or not. This gap raises concerns regarding legal security and transparency, particularly for the individuals concerned.

10.

As a result, the CNPD aligns with the opinion of the State Council dated November 28, 2023, highlighting the lack of precision in the scope of the said provision and emphasizing that it grants too much discretion to the State Prosecutor.

11.

In order to respect the constitutional principle of predictability and precision to which any legal or regulatory text must adhere, it is of paramount importance that the authors of the bill
1 See opinion of the State Council dated November 28, 2023, doc.parl. 8193/03 (hereinafter "opinion of the State Council"), page 2

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****Draft Law**** specifies the criteria that must be taken into consideration to determine whether a report or a judgment concerning a police member can be subject to transmission from the public prosecutor's office to the Grand-Ducal Police.

12. The CNPD considers it essential that the authors of the draft law provide clarifications on these points. It also reminds that only necessary and relevant data may be communicated.

1. Regarding Article 2 of the draft law creating the new Article 54-1 of the amended law of July 18, 2018, on the Grand-Ducal Police

13. Secondly, Article 2 of the draft law under review provides that "[...] when a member of the Police is suspected of being involved in criminal acts or acts that raise concerns that he poses a danger to himself or others, the observing police member must inform the Director General of the Police without delay."

14. The National Commission observes that this article imposes on the members of the Grand-Ducal Police the responsibility to report any suspicion of criminal acts or mental disturbances concerning their colleagues to the Director General of the Police. This provision introduces a new obligation for all members of the Grand-Ducal Police, as specified by the Council of State in its opinion.

15. Just as the Public Prosecutor's Office of the District Court pointed out in its opinion, the CNPD can understand that this new obligation imposed on the members of the Grand-Ducal Police aims to

respond to a “real need,” thus allowing the Director General to address, without delay, the situations envisaged by the provision in question. However, the CNPD also wishes to highlight the issue of the predictability of this measure.

16. Indeed, the CNPD regrets the lack of precision in the text of the draft law, which does not specify what could fall under the situations “that raise concerns that he poses a danger to himself or others.” Similarly, neither the text of the law nor the commentary on the articles precisely mentions the precautionary measures that the Director General of the Police could take in such circumstances.

2 See point A, page 11 of deliberation n°3/AV3/2021 of 10/02/2021.

3 See opinion of the Council of State of November 28, 2023, doc.parl. 8193/03 (hereinafter “opinion of the Council of State”), page 3

4 See opinion of the Public Prosecutor's Office of the District Court of May 4, 2023, doc.parl. 8193/01 (hereinafter “opinion of the Public Prosecutor's Office of the District Court”)

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17. Regarding the scope of the provision, the CNPD observes, upon reading the commentary on the articles, that the authors of the draft law propose concrete examples that could be covered by this measure, such as cases of domestic violence or suicidal tendencies.

18. In the case of the transmission of information related to suicidal tendencies, the police member reporting the facts and the Director General of the Police would, if necessary, be required to handle data related to the health of the officers, which constitute special categories of personal data within the meaning of Article 9 of the GDPR, referred to as “sensitive data.” However, this provision provides for a principle prohibition on processing such data unless one can justify recourse to one of the restrictive conditions of Article 9, paragraph 2. It follows that such transmission of sensitive data should be explicitly mentioned in the law, accompanied by appropriate safeguards for the individuals concerned.

19. In continuation of this reflection, the National Commission questions the appropriateness of directly incorporating into the text of the law an exhaustive list of scenarios, or at least precise conditions triggering the emergency procedure described. This approach would establish a more predictable legal framework and contribute to clarifying the application contours of the provision, thus providing police officers with clearer guidance on the circumstances that could justify a report under this provision.

20. However, in the absence of such clarifications in the text of the draft law, it will be difficult for police officers to assess which cases could lead to a report to the Director General of the Police. The CNPD wonders whether the provision in question could lead to arbitrary reports.

****Observations on the Honorability Investigation of Candidates for the Police and Civil Framework within the Grand-Ducal Police****

21. Article 3 of the draft law under review aims to establish a procedure for verifying the honorability of candidates applying within the police framework of the Grand-Ducal Police. Article 4 of the same draft law provides for an honorability check for any candidate within the civil framework.

22. The CNPD wishes to commend the initiative to integrate honorability verification within the civil framework, a step forward to fill a gap identified by the authors of the draft law. This approach will better regulate the access of civil framework officers to various files.

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containing personal data, including sensitive data related to police activities.

23.

The National Commission wishes to draw the attention of the authors of the bill to a matter it has already addressed in its previous opinions regarding integrity investigations, related to the change of the initial legislative framework applicable to data. Indeed, the data initially governed by the law of August 1, 2018, on the protection of individuals with regard to the processing of personal data in criminal matters as well as in matters of national security would now be subject to the GDPR due to their use for recruitment purposes.

24.

Furthermore, although Articles 3 and 4 of the bill under review establish the procedures for background checks or "integrity checks" of candidates for police and civil positions, specify the types of data processed, the individuals concerned, as well as the retention period of personal data, the National Commission wishes to emphasize that certain elements related to data processing are not sufficiently detailed, or are not detailed at all, in the bill.

25.

Thus, for the purpose of verifying the integrity of police personnel, the bill provides in its Article 3, paragraph (1), points 1° and 2° that the check carried out will focus on "the following facts that have been subject to a criminal conviction or that have led to the restoration of a police report or a police record [...] one or more facts incriminated as a crime or offense by law" as well as "the facts referred to in Article 563, point 3°, of the Penal Code relating to minor assaults and violence. Paragraph 2 does not apply to facts that, although falling under points 1° and 2°, have been subject to an acquittal, a decision of non-suit, a judicial or legal rehabilitation, or are time-barred."

26.

However, it should be noted that on the Police website, the list of offenses is more detailed:

"The integrity investigation includes a consultation of the central file. The facts committed as an adult that may lead to a refusal of admission to the training are notably as follows: Regular consumption of narcotics;

6 See in particular our opinions on Bill PL7691 (deliberation n°3/AV3/2021 of 10/02/2021 and deliberation n°42/AV20/2022 of 07/10/2022), on Bill PL7425 (deliberation n°42/2019 of 08/07/2019, deliberation n°2/2021 of 04 February 2021 and deliberation n°29/AV24/2021 of 01/10/2021), on Bill PL7863A (deliberation n°43/AV21/2022 of 07/10/2022 and deliberation n°56/AV28/2022 of 02/12/2022).

7 See point II, page 7 of deliberation n°3/AV3/2021 of 10/02/2021.

8 See the internal website of the Grand Ducal Police, "Becoming a police officer in the A1 treatment group" <https://police.public.lu/fr/recrutement/cadre-policier/a1.html>

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Affairs of physical violence (intentional assault and battery) or psychological violence (threats, insults);
Rebellion;

Failure to comply with police orders, evading police control.

27. While the omission of an exhaustive list of offenses in the law is understandable, the National Commission wonders whether it would not be wise to specify these offenses, at least in the commentary on the articles or possibly through a grand-ducal regulation?

28. Furthermore, in order to carry out the aforementioned control, Article 3, paragraph 4, for the police framework as well as Article 4, paragraph (2), subparagraph 2 for the civil framework, stipulate that "the Police consult the personal data of the candidate contained in the central file as well as the files that are legally accessible to them, provided that this consultation is relevant to the intended purpose."

29. However, the National Commission questions which files are referred to by this provision. Would it be the files listed in Article 43 of the amended law of July 18, 2018, relating to the Grand Ducal Police?

If this is the case, then the question arises regarding the actual necessity of consulting all these files. For example, one might wonder whether consulting the file of foreigners or asylum seekers is truly necessary.

30. If, in practice, only the central file is actually consulted, it would be appropriate to remove this reference to other "legally accessible" files. If other files are indeed consulted as part of the integrity investigation, it would be wise to draw up a restrictive list of these files.

31. In the absence of such clarifications, it is difficult to assess whether the principle of data minimization is respected. It should be recalled that, in accordance with this principle, only personal data strictly necessary for achieving the intended purposes may be used and consulted by the Police.

32. The CNPD is particularly questioning the potential consultation of the special register of minors. If such consultation is contemplated, it should be duly justified and explicitly specified in the legislative text. Furthermore, it should comply with the provisions of draft law No. 7991 currently in progress, particularly Article 57 as amended. At this stage, it seems that this consultation is only envisaged for the specialized services of the Judicial Police Service, notably the juvenile delinquency section, youth protection, and sexual offenses.

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33.

Furthermore, Article 3, paragraph (3) of the draft under review aims at a potential exchange of information between the Director of the State Intelligence Service (hereinafter referred to as the "SRE") and the Director General of the Grand Ducal Police in the context of police recruitment.

34.

This provision raises the question of the transmission of classified documents from the SRE to the Police. In the absence of clarification on the modalities of this exchange, the CNPD is unable to assess the compliance of these exchanges with the GDPR or the law of August 1, 2018, concerning the protection of natural persons with regard to the processing of personal data in criminal matters as well as in matters of national security. In this context, the CNPD refers to its inquiries regarding the interactions between the aforementioned law and the GDPR, given that the data processed by the SRE initially falls within the material scope of the said law.

35.

Regarding the transfer of data between the SRE and the Director General of the Grand Ducal Police, as well as the articulation between the application of the GDPR and other national legislations, the CNPD refers to the detailed observations made in its opinion of February 10, 2021 (deliberation no. 3/AV3/2021). These observations provide clarifications on these issues and should be taken into account in the development and implementation of the draft law under review.

36.

Finally, concerning the retention periods of data in the context of police and civil recruitment, the draft under review provides in Article 3, paragraph (6) for police recruitment and in Article 3, paragraph (5) of the same text for civil recruitment that the personal data of candidates "shall be destroyed six months from the day on which the decision regarding the application has become final."

37.

The CNPD welcomes the authors' intention to define a retention period for personal data in accordance with the requirements of the GDPR. However, these details are not sufficient to allow the National Commission to assess to what extent, in this specific case, the principle of limited data retention would be respected in accordance with the requirements of the GDPR.

38.

The National Commission assumes that this six-month period has been defined by analogy to

legislation concerning the military. However, it would be appropriate to provide additional explanations regarding the relevance of this duration in relation to the specific needs of the Police concerning the assessment of candidates' suitability. Although the draft law defines the retention period for data, the commentary on the articles should therefore specify the criteria used to establish this six-month period, thus enabling the CNPD to evaluate the proportionality of this retention period in relation to the personal data collected during suitability assessments.

Thus adopted in Belvaux on May 16, 2024.

The National Commission for Data Protection

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regarding draft law no. 8193 amending the modified law of July 18, 2018, on the Grand Ducal Police.